subject to the provisions of the Constitution and to the rules and standing orders regulating the procedure of Parliament.[26]

3. They are exempted from jury service. They can refuse to give evidence and appear as a witness in a case pending in a court when Parliament is in session.



Breach of Privilege and Contempt of the House

"When any individual or authority disregards or attacks any of the privileges, rights and immunities, either of the member individually or of the House in its collective capacity, the offence is termed as breach of privilege and is punishable by the House."[27]

Any act or omission which obstructs a House of Parliament, its member or its officer in the performance of their functions or which has a tendency, directly or indirectly to produceresults against the dignity, authority and honour of the House is treated as a contempt of the House.[28]

Though the two phrases, 'breach of privilege' and 'contempt of the House' are used interchangeably, they have different implications. "Contempt is not always a breach of privilege, while a breach of privilege is always contempt. This is because a breach of privilege is a clear violation of the privileges, immunities or powers included in. However, contempt is a more general concept that applies to anything that causes an inability to carry out member's duties."[29] In other words, the 'actions which are not breaches of any specific privilege but are offences against the dignity and authority of the House amount to contempt of the House'.[30] For example, disobedience to a legitimate order of the House is not a breach of privilege, but can be punished as contempt of the House.



Sources of Privileges

Originally, the Constitution (Article 105) expressedly mentioned two privileges, that is, freedom of speech in Parliament and right of publication of its proceedings. With regard to other privileges, it provided that they were to be the same as those of the British House of Commons, its committees and its members on the date of its commencement (ie, 26 January, 1950), until defined by Parliament. The 44th Amendment Act of 1978 provided that the other privileges of each House of Parliament, its committees and its members are to be those which they had on the date of its commencement (ie, 20 June, 1979), until defined by Parliament. This means that the position with regard to other privileges remains same. In other words, the amendment has made only verbal changes by dropping a direct reference to the British House of Commons, without making any change in the implication of the provision.[31]

It should be noted here that the Parliament, till now, has not made any special law to exhaustively codify all the privileges. They are based on five sources, namely,

1. Constitutional provisions,
2. Various laws made by Parliament,
3. Rules of both the Houses,
4. Parliamentary conventions, and